

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY  
OF THE CITY OF CHEYENNE**

Office of City Clerk

January 12, 2009

The Governing Body of the City of Cheyenne met on this date beginning at 6:00 p.m. in Council Chambers. Present were: MAYOR - Richard L. Kaysen; COUNCIL MEMBERS - Ms. Ash, Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Pierson, Dr. Rinne, Mr. Spiker and Mr. Valdez. The pledge of allegiance was recited.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Dan White, City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests and support by two other members is received. Any item removed from the Consent Agenda will be considered in its normal sequence on the agenda.) Mayor Kaysen announced agenda item #19 (sale of real property to Attention Homes) was being removed from the meeting agenda at the request of the sponsor, and advised item #10 (Public Hearing to receive input on sale of real property to Attention Homes) would be affected. Mr. Pierson moved to approve Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body.

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON DECEMBER 22, 2008. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM SINE DIE SESSION OF THE GOVERNING BODY ON JANUARY 5, 2009. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM THE FIRST REGULAR MEETING OF THE GOVERNING BODY ON JANUARY 5, 2009. Motion (per Consent Agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON JANUARY 6, 2009. Motion (per Consent Agenda) carried.

Mr. Brown moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Motion carried. Voting "yes" – all members of the governing body.

Public hearing to discuss the sale of City-owned real property located at 700 West Fox Farm Road, Cheyenne, Wyoming to Attention Homes, Inc. which sale will benefit the economic development of the City of Cheyenne, pursuant to Wyo. Stat. § 15-1-112(b)(i)(D). The estimated appraised value of said property to be sold is \$184,000 and will be sold to Attention Homes, Inc. for \$2,000. This land will provide additional space to facilitate the expansion and redevelopment of Attention Homes, Inc. Dan White, City Attorney, advised the parties involved were continuing negotiations regarding the sale and indicated the hearing will be rescheduled

with appropriate notice to the public provided. Mayor Kaysen announced the hearing would not be held at this time and that it would be rescheduled to a later date.

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM HR-1 HIGH-DENSITY RESIDENTIAL-ESTABLISHED DISTRICT TO P PUBLIC DISTRICT FOR BLOCK 40, BUFFALO RIDGE ESTATES, SIXTH FILING, AND PORTIONS OF THE ADJACENT ALLEYS, CHEYENNE, WYOMING (LOCATED EAST OF AND ADJACENT TO PINERIDGE AVENUE AND SOUTH OF SAGEBRUSH AVENUE).” Reporting for Public Services Committee, Mr. Brown advised there was no recommendation from Committee. Mr. Brown moved to approve on third and final reading, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no”. (#3838)

“AN ORDINANCE CREATING CHAPTER 17.107, OF TITLE 17, ZONING, OF THE CHEYENNE CITY CODE 2002, RESTRICTED USE CONTROL AREA OVERLAY (RUCOA) DISTRICT ON A PORTION OF SOUTH PARK ESTATES 2<sup>ND</sup> FILING AND INTERIOR HEIGHTS, STANFIELD ADDITION BLOCKS 694, 744, AND STANFIELD 3<sup>RD</sup> ADDITION, AND PORTIONS OF THE ORIGINAL CITY OF CHEYENNE, BLOCK NUMBER 713-714, 754-756, AND 775-777, CHEYENNE, WYOMING, ALSO TO BE KNOWN AS SOUTH PARK ESTATES, 6<sup>TH</sup> FILING (LOCATED NORTH OF I-80 BETWEEN PARTOYAN DRIVE AND WALTERSCHEID BOULEVARD).” Mr. Brown moved to approve on third and final reading, seconded by Mr. Pierson. Motion carried. Voting “yes” – all members of the governing body. (#3839)

“AN ORDINANCE ANNEXING TO THE CITY OF CHEYENNE, WYOMING, SWAN RANCH SITUATED IN SECTIONS 11 AND 12, T. 13N., R. 67W., OF THE 6<sup>TH</sup> P.M., LARAMIE COUNTY, WYOMING (LOCATED ALONG CLEAR CREEK SOUTH OF AND INCLUDING I-80 RIGHT-OF-WAY AND EAST OF AND INCLUDING I-25 RIGHT-OF-WAY).” Gay Woodhouse, attorney representing several property owners in the area, spoke in opposition to the ordinance, expressing concerns with access; health, welfare and safety; traffic and railroad crossing issues; state statute annexation criteria; percentage of contiguity to city boundaries; county pocket scenario; unknown future development plans for the property, and infrastructure responsibility and potential costs involving the developer and nearby property owners. Ms. Woodhouse introduced James B. Wright, Jb Wright and Associates, Fort Collins, CO, civil engineer, who provided comments and suggestions regarding the proposed annexation relative to county pockets/enclave issues, communication with residents in the area, infrastructure developer responsibilities, reimbursement fees, and future property improvements. Also expressing concerns with the proposed annexation were John Fafoutakis, Leo Garcia and Barbara Gjervold. Topics discussed included: Cost of potential infrastructure improvements to area property owners and financial burden, and unknown property development plans. Brad Emmons, AVI Engineering, agent for the developer, stated the proposed property annexation alone will not cause creation of a county pocket, and that developer infrastructure reimbursements are pursuant to city code requirements and no reimbursements for off-site improvements are being required at this time. He advised reimbursements may be scheduled in the future depending on improvements based upon the final plat design, and provided information on plat requirements, including a traffic study. Mr. Brown moved to approve on

third and final reading, seconded by Mr. Pierson. Upon inquiry, Brandon Cammarata, Urban Planning Office, reviewed state statutory annexation criteria and staff findings, and confirmed there is nothing in the annexation action itself that triggers infrastructure costs to nearby property owners. Discussion followed and included: Concerns with train crossing traffic (safety and volume), emergency responder access, potential issues involving a final plat, and state statute criteria. Ms. Case raised a procedural question concerning passing the ordinance on 3<sup>rd</sup> and final reading when governing body members have changed (i.e. newly elected members recently taking office) and whether there was any conflict or issue with new members acting in their official capacity with regard to carry-over of continuing City Council business items. Upon inquiry, Dan White, City Attorney, advised he had reviewed Robert's Rules of Order pertaining to whether pending business left over upon adjournment of a previous City Council is resumed at the next meeting of City Council, and stated the language does not apply to City Council as it is not a legislative assembly or a board, but that it is somewhat unique as it has both legislative and executive functions. He cited a past Kentucky Supreme Court ruling that ruled on the importance of a City Council to act as a continuous body to be able to work on unfinished business and to conduct its business expeditiously, and further noted information found in McQuillin's Treatise on Municipal Corporations which states a governing body is considered to be continuous and it is in the public's interest that City Council's be able to conduct business expeditiously. Mr. White opined that the City Council is permitted to proceed with all of the items on the meeting agenda. Comments followed on the City's adoption of Robert's Rules of Order, and City fire and rescue response to the proposed annexation area. Motion carried. Voting "yes" - all members of the governing body with the exception of Ms. Ash, Ms. Case, and Mr. Valdez voting "no." (#3840)

"AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM CB COMMUNITY BUSINESS DISTRICT TO HR-2 HIGH-DENSITY RESIDENTIAL-DEVELOPING DISTRICT FOR LOT 6, BLOCK ONE, GATEWAY SOUTH, CHEYENNE, WYOMING (LOCATED EAST OF WALTERSCHEID BOULEVARD AND SOUTH OF WEST FOX FARM ROAD)." Due to postponement from Dec. 8, 2008, the item was referred to Public Services Committee.

"AN ORDINANCE AMENDING TITLE 17 ZONING, CHAPTER 17.08 ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM LR-2 LOW DENSITY RESIDENTIAL-DEVELOPING DISTRICT AND A-1 AGRICULTURAL AND RURAL RESIDENTIAL DISTRICT TO PUD PLANNED UNIT DEVELOPMENT DISTRICT FOR A REPLAT OF BLOCK 5, LOT 1, A PORTION OF BLOCK 5, LOT 2, THE POINTE; AND THAT PARCEL DESCRIBED IN BOOK 1705 AT PAGE 5 OF THE LARAMIE COUNTY CLERK'S RECORDS, SITUATED IN THE N½ OF THE SW¼ OF SECTION 17 AND THE N½ OF THE SE¼ OF SECTION 18, T.14N., R.66W., 6<sup>TH</sup> P.M., CHEYENNE, WYOMING, ALSO TO BE KNOWN AS POINTE PLAZA (LOCATED WEST OF AND ADJACENT TO POWDERHOUSE ROAD, NORTH OF GARDENIA DRIVE)" -- referred to Public Services Committee (sponsor - Mr. Collins).

"A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR PROPERTIES SITUATED IN A

PORTION OF SECTION 1, 12, AND 17, T.13N., R.67W., 6<sup>TH</sup> P.M., LARAMIE COUNTY, WY (LOCATED SOUTH OF I-80 AND PREDOMINANTLY EAST OF SOUTHWEST DRIVE).” Expressing concerns were: Victoria Sopr, who referenced a handout she provided at the Public Services Committee meeting, John Fafoutakis, Paula Qualls, Leo Garcia, Donn Edmunds, Jon Ware and Rawley Marrs. Topics presented included: Concerns with potential future infrastructure costs to nearby property owners; property values; train crossing traffic and congestion issues (Clerk’s note: Letters were read citing train/traffic statistics); emergency responder concerns; increased traffic due to construction when property is developed and affiliated construction conditions; health and safety issues; access points, and financial burden involving infrastructure reimbursements for those on fixed incomes. Mike Basom, Dray, Thomson & Dyekman law firm, representing the developer, expressed support for a 30 day postponement of the item, as recommended by the Public Services Committee, to provide time to continue negotiations with the railroad. Mr. Brown moved to adopt, seconded by Mr. Collins. Mr. Brown moved to postpone for 30 days (to Feb. 9, 2009), seconded by Mr. Pierson. Gay Woodhouse, attorney representing residents in the area, spoke in opposition to annexation generally and the motion to postpone, citing her concerns with state statute criteria and Burlington Northern railroad property inclusion in compilation of the contiguity percentage. John Fafoutakis spoke in opposition to postponement unless the developer would build a suitable alternate access to the railroad grade crossing area. Following comments pertaining to postponement(s), motion to postpone carried. Voting “yes” – all members of the governing body with the exception of Ms. Ash, Ms. Case, and Mr. Valdez voting “no”.

“A RESOLUTION DESIGNATING THE SUNDAYS DURING 2009 THAT ANNUAL LIQUOR LICENSEES MAY EXTEND DISPENSING ROOM HOURS OF OPERATION FOR SALES UNTIL 2:00 A.M. THE FOLLOWING DAY.” Upon inquiry by John Fafoutakis, Mayor Kaysen advised the proposed resolution would approve extension of liquor licensees’ Sunday hours from 10:00 a.m. to 2:00 a.m. the following day on 4 Sundays during 2009 (i.e. Feb. 1, May 24, July 19 and 26). Upon inquiry, Chief Bob Fecht, Police Department, advised recently released driving while intoxicated arrest statistics reflects a significant increase in volume, and provided statements on the annual 4 day request generally. J.J. Moran, President, Laramie County Liquor Association, spoke in favor of the extended Sunday hours as an option for licensees to remain open longer on the approved days, if desired, as provided by state statute. Brian Grzegorzcyk, owner of Alf’s Pub and Package Liquor, also spoke in support of the resolution, and provided information on charitable programs numerous bar owners are involved in and how fund-raising efforts give back to the community. Mr. Valdez reported there was no recommendation on the item from Finance Committee. Mr. Collins moved to adopt, seconded by Mr. Brown. Upon inquiry, Mr. Moran provided a brief review on the history of the Sunday hours extension request, and Carol Intlekofer, City Clerk, advised the statute is not specific to Sundays and can be applicable to other days of the week. Comments included liquor sales revenue; option by licensees to remain open longer on the approved Sundays; hours of operation, and statutory wording indicating the governing body “may” approve. Motion carried. Voting “yes” – all members of the governing body with the exception of Ms. Broyles, Mr. Pierson and Mr. Spiker voting “no”. (#5095)

“A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT OF BUFFALO RIDGE ESTATES, TENTH FILING, A RE-SUBDIVISION OF BLOCK 29, BUFFALO RIDGE ESTATES, FOURTH FILING, BLOCK 40, BUFFALO RIDGE ESTATES, SIXTH FILING, AND BLOCK 43, BUFFALO RIDGE ESTATES, NINTH

FILING, CHEYENNE, WYOMING (LOCATED EAST OF AND ADJACENT TO PINERIDGE AVENUE AND SOUTH OF SAGEBRUSH AVENUE).” Mr. Brown moved to adopt with staff recommendations #1 through 8, seconded by Mr. Pierson. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no”. (#5096)

[CA] “A RESOLUTION APPROVING THE SALE OF CITY-OWNED REAL PROPERTY LOCATED AT 700 WEST FOX FARM ROAD, CHEYENNE, WYOMING, TO ATTENTION HOMES, INC., WHICH SALE WILL BENEFIT THE ECONOMIC DEVELOPMENT OF THE CITY OF CHEYENNE, PURSUANT TO WYO. STAT. §15-1-112(b)(i)(D)” – item withdrawn from the agenda earlier in the meeting (sponsor - Mr. Pierson).

[CA] “A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT FOR THE VILLAGE, 2ND FILING, A REPLAT OF LOT 31, BLOCK 2, THE VILLAGE SUBDIVISION, CHEYENNE, WYOMING (LOCATED SOUTH OF STOREY BOULEVARD BETWEEN SYCAMORE ROAD AND POWDERHOUSE ROAD)” -- referred to Public Services Committee (sponsor - Mr. Collins).

[CA] “A RESOLUTION SUPPORTING THE CITY OF CHEYENNE’S APPLICATION FOR A LAND & WATER CONSERVATION FUND GRANT FOR THE MARTIN LUTHER KING PARK BASKETBALL COURT PROJECT (2007-2010 1% SALES TAX)” -- referred to Finance Committee (sponsor - Ms. Ash).

#### **LEASES/CONTRACTS/LEGAL:**

Professional Services Agreement between the City of Cheyenne, and Ziebart Consulting, LLC, for comprehensive federal government affairs consulting services. Mr. Valdez moved to approve in the amount of \$4,000.00 per month, seconded by Mr. Collins. Mr. Valdez moved to amend by substitute, seconded by Mr. Collins. Upon inquiry, Deputy City Attorney Erik Rasmussen advised the substitute amends the section pertaining to binding arbitration to reflect any litigation would be under the jurisdiction of the First Judicial District Court in Wyoming. Comments followed in support of the substitute; services available through the state’s congressional delegation, and consultant reporting concerns. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body with the exception of Ms. Case voting “no”. (#5326)

A Transmission Easement License Agreement between the City of Cheyenne and Silver Sage Windpower LLC, a Delaware LLC, for transmission of electricity across a certain portion of the Happy Jack Landfill Property. Mr. Valdez moved to approve, seconded by Mr. Brown. Mr. Collins moved to amend by substitute, seconded by Ms. Broyles. Nathan Beauheim, Engineering Services Director, clarified the substitute addresses typographical errors, changes the time frame in which the easement can be exercised and dollar amounts, and provided information on revenue to the City pursuant to provisions of the agreement. Motion to amend carried. Voting “yes” – all members of the governing body with the exception of Ms. Ash voting “no”. Comment followed on overhead vs. underground power lines, and potential future annexation and development of the property. Main motion as amended by substitute carried.

Voting “yes” – all members of the governing body with the exception of Ms. Ash and Dr. Rinne voting “no”. (#5327)

[CA] Memorandum of Understanding between the City of Cheyenne and Laramie County for the provision of a City/County Paintball Facility (2003-2006 1% Sales Tax) -- referred to Finance Committee.

[CA] Softball Officiating Agreement between the City of Cheyenne, Recreation Department, and the Cheyenne Umpires Association Wyoming, for 2009 and 2010 umpire and scorekeeper services -- referred to Finance Committee.

### **CHANGE ORDERS/CONTRACT MODIFICATIONS:**

Contract Modification No. 1 to Contract No. 5076 between the City of Cheyenne and AVI Professional Corporation for additional design work and construction management services for the Henderson Basin Flood Control Improvement Project (2007-2010 1% Sales Tax). Doug Vetter, Interim City Engineer, noted a substitute for amendment had been submitted. Mr. Valdez moved to approve, seconded by Mr. Brown. Mr. Valdez moved to postpone for two weeks (to Jan. 26, 2009), seconded by Mr. Pierson. It was advised that Finance Committee’s recommendation to postpone was to allow for re-negotiations with the consultant, which has occurred since the Committee meeting. Motion to postpone failed. Voting “no” – all members of the governing body. Mr. Collins moved to amend by substitute agreement, seconded by Mr. Brown. Darrell Johnson, AVI, P.C., advised the firm has re-negotiated the scope of work with City staff and reviewed areas that will result in reduced costs. Following discussion, motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body. (#5076) Under other City business, Ms. Broyles expressed appreciation to those involved in negotiations resulting in cost savings to the City.

[CA] Contract Modification No. 2 to Contract No. 5280 between the City of Cheyenne and Reiman Corporation to clarify warranty responsibilities on the Norris Viaduct Project (1% Specific Purpose Sales and Use Tax). Motion (per Consent Agenda) carried. (#5280)

[CA] Contract Modification No. 3 to Contract No. 5280 between the City of Cheyenne and Reiman Corporation for additional work for the Norris Viaduct Project (2003-2006 1% Sales Tax; 1% Specific Purpose Sales and Use Tax). Motion (per Consent Agenda) carried (amount not to exceed \$125,600.00). (#5280)

[CA] Contract Modification No. 3 to Contract No. 4968 between the City of Cheyenne, Engineering Department and Wyoming Department of Transportation for Pershing Blvd. between Pioneer Ave. and 1-25 (2003-2006 1% Sales Tax) -- referred to Finance Committee.

### **CONSIDERATION OF BIDS:**

[CA] Consideration of Bid #M-08-09 for annual contracts for snow removal and other emergency services (2007-2010 1% Sales Tax) -- referred to Finance Committee.

[CA] Consideration of Bid #R-15-09 for furnishing ammunition for the Police Dept., from Ultramax Ammunition of Rapid City, SD; Scottsdale Gun Club of Scottsdale, AZ; BVAC, Inc. of Florence, MT, and Lawmen's and Shooters' Supply, Inc. of Vero Beach, FL -- referred to Finance Committee.

#### **APPLICATIONS:**

[CA] Restaurant liquor license application filed with the City Clerk's Office for Yu Zheng d/b/a Golden House Restaurant, 1651 Carey Ave., Ste. 8, Cheyenne, WY. Motion (per Consent Agenda) carried.

#### **ANNOUNCEMENTS/REPORTS/MOTIONS:**

Announcement was made that due to the Martin Luther King, Jr., holiday on Monday, January 19, 2009, Finance Committee will meet at 11:00 a.m. and Public Services Committee will meet at 12:15 p.m. on Tuesday, January 20, 2009, in Council Meeting Room 122; Vouchers meeting will be held in Council Chambers at Noon.

Announcement was made of a public hearing to be held January 26, 2009 at 6:00 p.m. in City Council Chambers to receive comments and input on the proposed sale of real property owned by the City of Cheyenne, described generally as all those portions of Lots 2, 3 and 4, Block 553, Original City, Cheyenne, Laramie County, WY (located south of 9<sup>th</sup> Street and east of Duff Avenue), to Schroll Cabinets, Inc., which sale will benefit the economic development of the municipality pursuant to Wyo. Stat. §15-1-112(b). The estimated appraised value of said property to be sold is \$3,800.00.

#### **OTHER CITY BUSINESS:**

Ms. Broyles announced on Jan. 13, 2009 at 5:00 p.m. at Carey Jr. High School, a public meeting will be held to discuss plans for the intersection corridor of East Pershing Blvd. located near Cole Shopping Center.

There being no further business to come before the governing body, the meeting was officially adjourned at 8:14 p.m.

Submitted by,

Carol Intlekofer, MMC  
City Clerk

This notice is available in alternative, accessible formats upon request.

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